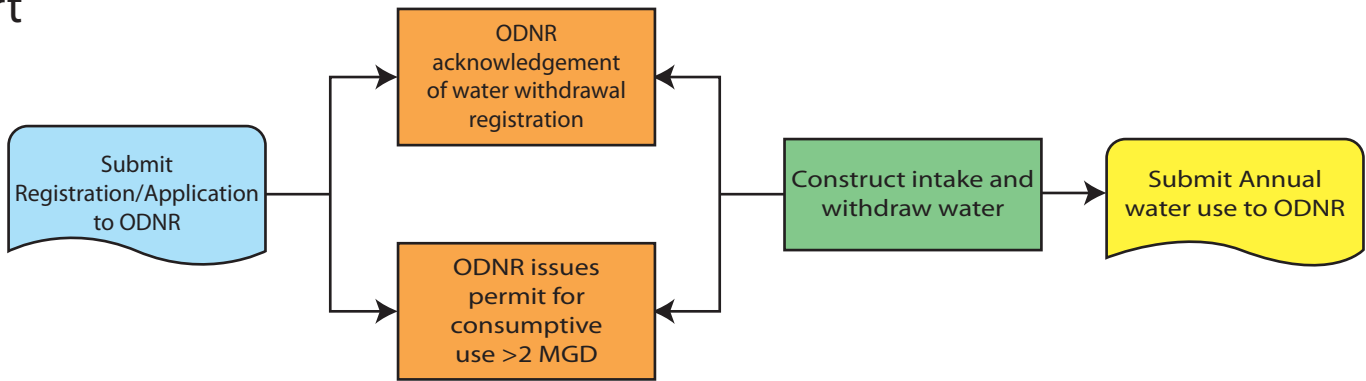


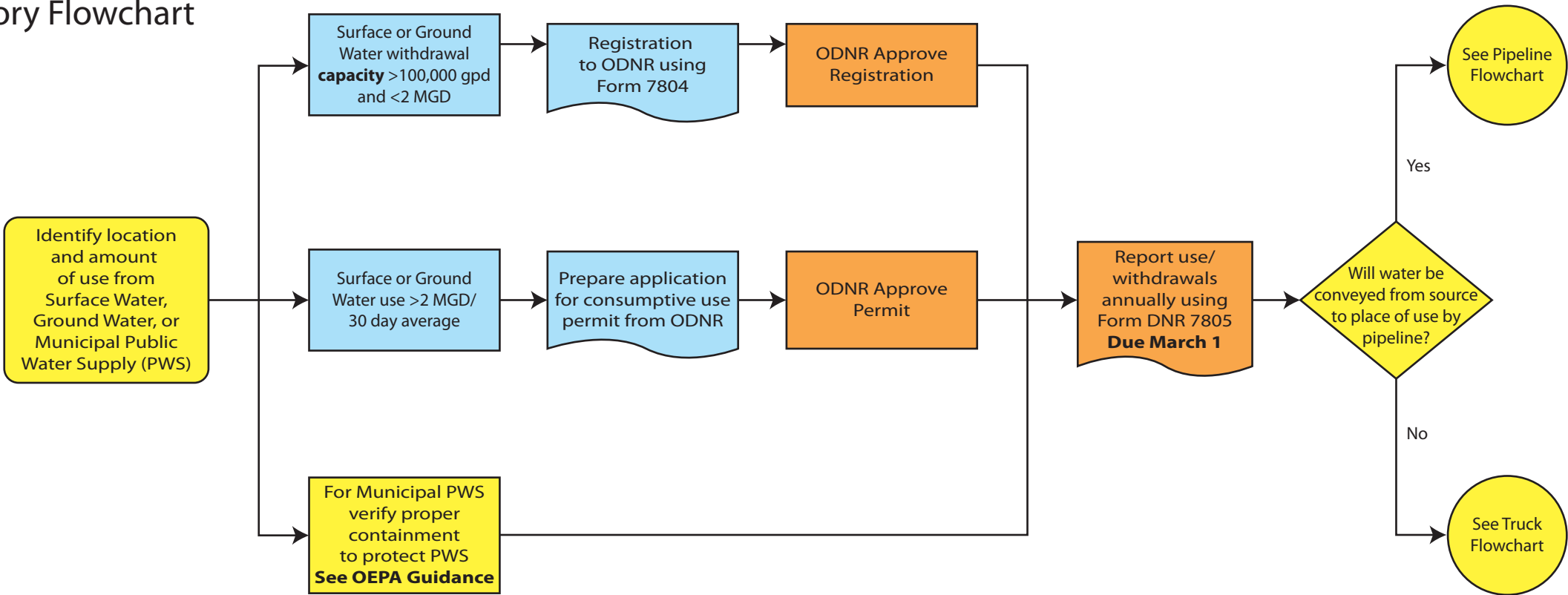
OH Water Management Planning Task

Agency Requirements Flowchart



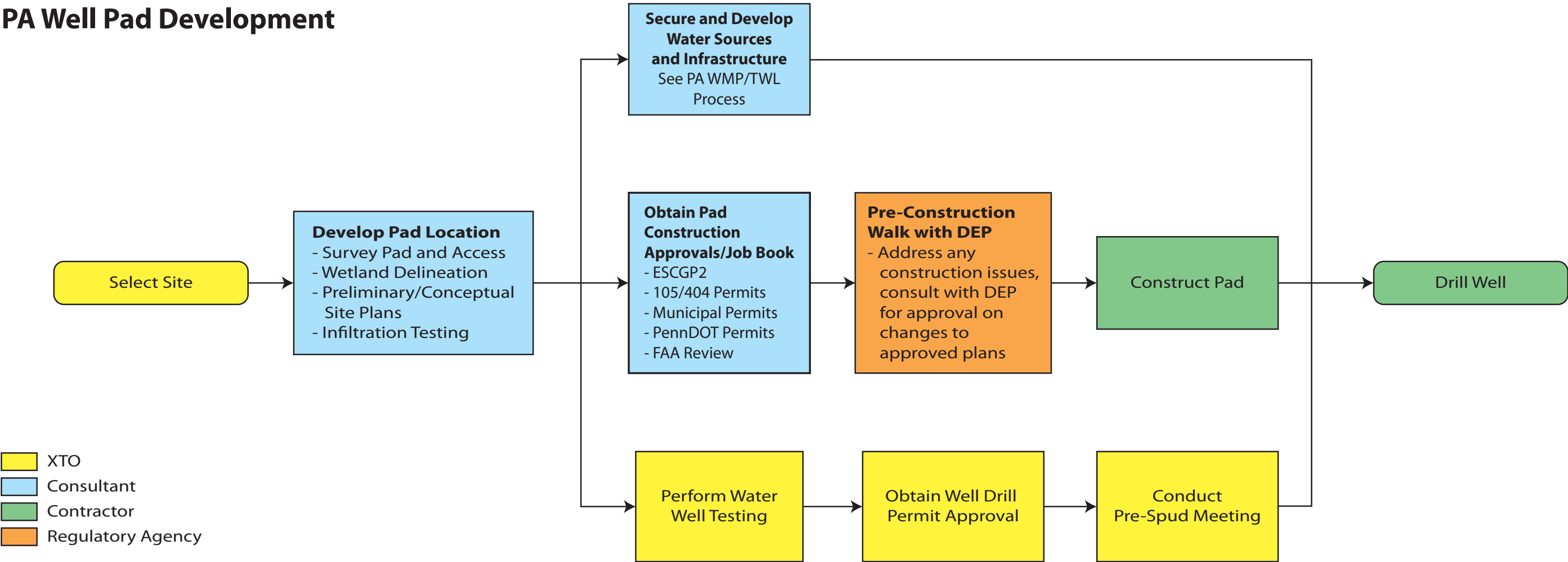
Task -----Subtask	TIMEFRAME	REGULATION	SECTION	REGULATION DESCRIPTION	AGENCY	FORM	ADDITIONAL INFORMATION	RESPONSIBLE PARTY
Water Management Planning								
Surface or Ground Water Withdrawal with Capacity >100,000gpd, and <2MGD	30 Day review period	ORC	1521.16	Water Withdrawal Registration	ODNR	DNR 7804	Lists sources and facility capacity	CONSULTANT
Surface Water Use >2MGD	NOTIFY DEP UP TO 30 DAYS AFTER WITHDRAWAL	ORC	1501.33	Consumptive Use Permit (20-yr)	ODNR	Application for Water Withdrawal Permit	\$1,000 fee	XTO Energy
Water Withdrawal Report	Annual report	ORC	1521.16	Water Withdrawal Registration	ODNR	DNR 7805	Due Mar 1 following calendar year, even if zero withdrawal	XTO Energy
Surface Water Diversion from Ohio River Basin 100,000gpd, 3MG per month		ORC	1501.32	Ohio River Basin Diversions	ODNR	ODNR to be announced		CONSULTANT
Backflow Prevention and Cross-Connecion Control		OAC	3745-95	Public Water Supply Protection	OEPA	Contact District OEPA office to verify protection		XTO Energy

XTO Operations/Regulatory Flowchart



- XTO
- Consultant
- Contractor
- Regulatory Agency

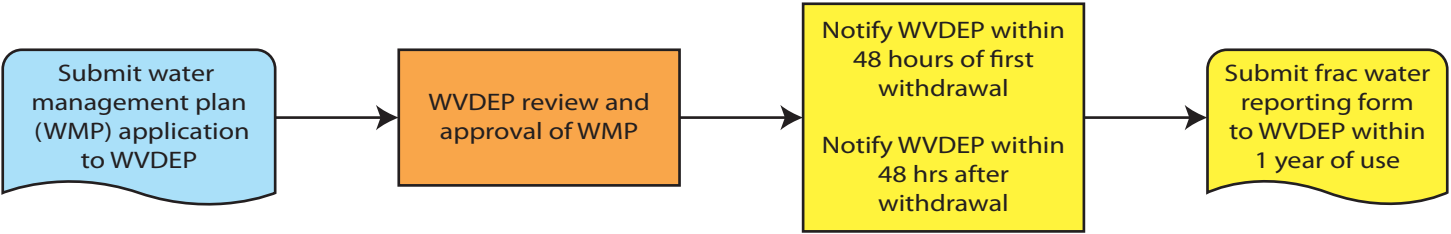
PA Well Pad Development



Task -----Subtask	TIMEFRAME	REGULATION	SECTION	REGULATION DESCRIPTION	AGENCY	FORM	ADDITIONAL INFORMATION	RESPONSIBLE PARTY
PA Well Pad Management Planning								
DRILL/WELL PERMIT	45-60 DAY REVIEW PERIOD	58. Pa.C.S. 3201-3274	3211(a)	PERMIT TO DRILL AND OPERATE AN UNCONVENTIONAL WELL	DEP	8000-PM-OOGM0001b, 8000-FM-OOGM0058, 5500-PM-OG0076, 8000-FM-OOGM0118		XTO Energy
WMP AND TWL PLANNING	SEE WMP PLANNING FLOWCHART							XTO Energy AND CONSULTANT
CHAPTER 105 PERMIT	60-120 DAY REVIEW	TITLE 25 CH 105	13; 441	GENERAL PERMITS/JOINT PERMIT	DEP	3150-PM-BWEW0500 (GP) 3150-PM-BWEW0036A (JPA)	Authorizes impacts to streams, wetlands	CONSULTANT
SECTION 404 PERMIT	60-120 DAY REVIEW	33 USC 1251	404	PA STATE PROGRAMMATIC GENERAL PERMIT (FEDERAL)	USACE	PASGP-4 PERMIT COMPLIANCE, SELF-CERTIFICATION FORM	Authorizes impacts to streams, wetlands	CONSULTANT
CHAPTER 102 ESCGP-2 Permit	60-120 DAY REVIEW	TITLE 25 CH 102	102.5	EROSION AND SEDIMENT CONTROL	DEP	NOI 8000-PM-OOGM005	Authorizes earth disturbance greater than five acres	CONSULTANT
CHAPTER 102 ESCGP-2 Permit	30 DAY REVIEW	TITLE 25 CH 102	102.7	NOTICE OF TERMINATION	DEP	3150-PM-BWEW0229b		CONSULTANT
SECTION 106 CLEARANCE	30 DAY REVIEW	54 U.S.C.	106	HISTORIC PROPERTIES REVIEW	PHMC/SHPO	PHMC REQUEST TO INITIATE CONSULTATION (RIC) FORM, PHMC NEGATIVE SURVEY FORM (if no resources have been identified)	Only required if undergoing 404 review by USACE	CONSULTANT
FLOODPLAIN/FLOODWAY CLEARANCE	60 DAY REVIEW	TITLE 25 CH 106	106.11-106.26	FLOODPLAIN MANAGEMENT	DEP	3150-PM-BWEW0551		CONSULTANT
MUNICIPAL REQUIREMENTS	60-120 DAY REVIEW	PA MPC	ARTICLE V, VI	SALDO, CONDITIONAL USE, ZONING, ETC.	Municipality	SPECIFIC TO MUNICIPALITY	Requirements for pad development vary between municipalities	CONSULTANT
STATE ROAD DRIVEWAY PERMIT	30 DAY REVIEW PERIOD	CH 441	441.3	ACCESS TO STATE ROADS	PENNDOT	M-945A	HOP For access roads, driveways	CONSULTANT
EXCESS MAINTENANCE AGREEMENTS AND BONDING	60-90 DAYS	TITLE 67 CH 189	189.2	STATE ROAD BONDING	PENNDOT	M-4902EMA	See PENNDOT Pub 23, Ch 15	XTO Energy

WV Water Management Planning Task

Agency Requirement Flowchart



Task -----Subtask	TIMEFRAME	REGULATION	SECTION	REGULATION DESCRIPTION	AGENCY	FORM	ADDITIONAL INFORMATION	RESPONSIBLE PARTY
Water Management Planning								
Water Management Plan for Horizontal Drilling Permits	30-60 days	WVC	35-8	Water Management Plans	WVDEP	WMP form (made part of H6A Well Work Application)	Do not use Withdrawal Guidance Tool online	CONSULTANT
Frac Water Reports	1 year after use	WVC	35-8	Consumptive Use Permit (20-yr)	WVDEP	Application for Water Withdrawal Permit		XTO Energy
Water Management Plan for Centralized Impoundments	30-60 days	WVC	35-8	Water Management Plans	WVDEP	WMP form (made part of H6A Well Work Application)		CONSULTANT
Water Withdrawal Notification	48 hrs prior to withdrawal	WVC	35CSR8		WVDEP	Email to WVDEP		XTO Energy
Water Source Signage	Prior to and During Withdrawal	WVC	35CSR8		WVDEP	NA		XTO Energy

XTO Operations/Regulatory

